

MEMORANDUM TO THE FILE

Subj: DETERMINATION THAT ONLY ONE SOURCE IS REASONABLY AVAILABLE FOR A RFO FAR PART 12 ACQUISITION UNDER THE SIMPLIFIED ACQUISITION THRESHOLD**I. BACKGROUND:**

1. In accordance with FAR 12.102(a), for acquisitions of commercial products or commercial services valued at or below the simplified acquisition threshold (SAT), the decision to restrict competition must be documented, including the basis for determining that only one source is available.
2. As required by FAR 12.102(a), this memorandum documents the basis for the decision that only one source is reasonably available to satisfy the agency's needs for this acquisition of commercial products/services, which is valued below the simplified acquisition threshold.

II. DESCRIPTION OF ITEM OR SERVICE:

The Government is seeking vendor support from SkyDive Elsinore in the form of contracted air, facilities, riggers and airfields to support Military free fall (MFF) operations for the Period of Performance. 3d Reconnaissance Battalion shall be conducting deployment for training (DFT) to conduct MFF operations in attainment of Category III capability. Contracted air will be used to support the high volume of parachute operations and jumps required to meet Category III MFF capability. This volume of jumps cannot be met in current OCONUS location. The high volume of jumps shall be conducted with contract aircraft with facilities on site at Skydive Elsinore to accommodate the long days and high number of jumps per day. For required high altitude operations military aircraft will have to be utilized (C-130) with airfields that can support the aircraft. Additional facilities are required in Porterville Airfield to support these high-altitude parachute operations and training requirements.

III. THE DETERMINATION FOR USE OF OTHER THAN FULL AND OPEN COMPETITION IS BASED ON THE FOLLOWING *(select all that apply)*:**A. ☐ *ONLY ONE RESPONSIBLE SOURCE* *(select all that apply)*:**

1. ☐ **RESTRICTIVE RIGHTS.** The source has established proprietary rights, limited rights in data, patent rights, copyrights or secret processes in the item or service required.
2. ☐ **EXCLUSIVE LICENSING AGREEMENTS.** The item or service is only available from the Original Equipment Manufacturer (OEM), or there is only one authorized distributor or technical representative for the OEM.

3. X OTHER REASONS.

Skydive Elsinore meets all the extensive and specialized requirements the government needs outlined in the PWS. Onsite facilities in both Skydive Elsinore and Porterville Airfield provide the government with the ability to meet training goals and high volume of jumps in the short POP. The large volume of jumps needed to meet training requirements cannot be met using solely military aircraft and contract air must be used at Skydive Elsinore with onsite facilities and rigger support. Additionally, Skydive Elsinore has airspace restrictions over Lake Elsinore that prohibit the adequate environment for high altitude training requirements. Suitability of Porterville Airfield for this high-altitude type of jumps and Skydive Elsinore's own facility located there meet the standards in the PWS. The ability of the airfield/runway to support C-130 and MV-22 flights at Porterville, CA is required to utilize these aircraft for high altitude training that cannot be met in Lake Elsinore due to both airspace and airfield restrictions. Transition from Lake Elsinore to Porterville is required to meet required training.

Currently Skydive Elsinore owns both the facilities in Lake Elsinore and Porterville. If the government is required to solicit additional sources, it would require new contract requirements from other vendors with Skydive Elsinore and would not meet the government's timeline. This is also estimated to create additional extensive costs for the government. If unable to conduct this training, deployment requirements will not be met for 3d Reconnaissance Battalion.

B. ***BRAND NAME***

Item required must be a brand name, product, or feature of a product, particular to one manufacturer

C. ***URGENT AND COMPELLING***. The supplies or services are of such unusual and compelling urgency that the Government would be seriously injured unless the agency is permitted to limit the number of sources from which it solicits bids or proposals. Urgent requirements are supplies or services that will result in a work stoppage, or are mission critical and the routine processing time would result in injury to the Government. The determination that the procurement for the above item/service is an urgent and compelling requirement is based on the following:

1. Date on which the requirement was first identified:
2. Required delivery date/period of performance:
3. Explanation of why delivery/commencement of services by the date mentioned above is required: